

The Jammu and Kashmir Board of Professional Entrance Examination (BOPEE) Regulations, 2016

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State of Jammu-Kashmir - Act

The Jammu and Kashmir Board of Professional Entrance Examination (BOPEE) Regulations, 2016

JAMMU & KASHMIR

India

The Jammu and Kashmir Board of Professional Entrance Examination (BOPEE) Regulations, 2016

Rule

THE-JAMMU-AND-KASHMIR-BOARD-OF-PROFESSIONAL-ENTRANCE-EXAMINATION-BOPEE-REGULATIONS-2016 of 2016

Published on 27 January 2016

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The Jammu and Kashmir Board of Professional Entrance Examination (BOPEE) Regulations, 2016

Published vide Notification No. 002-BOPEE of 2016, dated 27.1.2016

No. 002-BOPEE of 2016. - In exercise of the powers conferred by section 24 of the Jammu and Kashmir Board of Professional Entrance Examinations Act, 2002, the Board hereby makes the following Regulations, namely : -

1.

Short title and commencement.

- (I) These Regulations may be called "The Jammu and Kashmir Board of Professional Entrance Examination (BOPEE)

Regulations, 2016".

(II)

They shall come into force on the date of their publication in the Government Gazette.

2.

Application of the Regulations.

- (I) These Regulations shall apply to the conduct of Entrance Tests, and making of selection of candidates by the Board for admission to various Professional Courses in the Professional Colleges of the State.

(II)

All candidates who seek admission and/or get admitted to any Professional Course in the State are deemed to have fully read and accepted the conditions contained in these Regulations.

(III)

The Board reserves the right to change/modify any of the conditions enumerated herein for the purpose of complying with any of the Regulations of the Medical Council of India, Dental Council of India, University Grants Commission, AICTE, affiliated University or any other competent authority.

(IV)

Words or expressions used in these regulations, but not defined herein, shall have the same meaning as assigned to them respectively in the Jammu and Kashmir Board of Professional Entrance Examinations Act, 2002, the Jammu and Kashmir Reservation Act, 2004 or the rules made under these enactments as amended from time to time.

3.

Eligibility.

- (I) The applicant must be permanent resident of the J&K State as defined in section 6 of the Constitution of Jammu and Kashmir.

(II)

The candidates applying for Common Entrance Test (CET) must be at least 17th years old on 31st December of the relevant year and have passed 10+2 or equivalent examination with at least 50% marks for Open Merit Category candidates, including the Children of Defence Personnel, Children of Para-Military Forces, Children of State Police Personnel and candidates possessing outstanding proficiency in Sports and 40% marks for the candidates belonging to SC/ST and Other Backward Classes.

(III)

The candidates applying for MD/MS/PG Diploma or MDS Entrance Test must-

(a)

possess MBBS/BDS (as the case may be) degree from the University of Jammu/University of Kashmir or an equivalent degree recognised by the University of Jammu/University of Kashmir and the Medical Council of India/Dental Council of India ; and

(b)

have completed, at the time of his/ her first round of counseling, satisfactorily one year pre-registration compulsory rotatory internship in a duly recognised institution as laid down by the University of Jammu/University of Kashmir for registration as a Medical/Dental Graduate; and also registered with Medical/Dental Council (as the case may be) of any State :

Provided that the doctors who have done their Postgraduation or Diploma Courses in any Specialty at the Govt. expenses shall be entitled to seek admission for undergoing further Post-Graduation or Diploma in another specialty in the State Medical Institutions only on payment of such fee as may be notified by the Government from time to time :

Provided further that the doctors who are undergoing Post-Graduation/Diploma Course in any specialty at the Government expenses shall not be eligible to apply for undergoing Post-Graduation Courses in any other specialty in the State Medical Institutions till completion of their Postgraduation/Diploma Course, as the case may.

(IV)

The candidates applying for Entrance Test for admission to B. Ed. Jammu/Kashmir must possess such qualification as may be prescribed from time to time by the University with which the concerned college is affiliated.

(V)

The candidates applying for Entrance Test for admission to three year diploma in Engineering Course must possess such qualifications as may be prescribed from time to time by the AICTE.

4.

In-service candidates.

- Those who are in-service of any organization /department should submit the applications through their Heads of the Departments concerned (like Director, Health Services, Srinagar/Jammu in case of in-service Doctors) with an endorsement to the effect that in case of selection, the candidate will be relieved promptly for joining the course.

5.

Syllabi for various entrance tests.

- The syllabi for each Entrance Test and /or topic wise distribution of marks shall be such as may be proposed by the Curriculum Committee from time to time and approved by the Advisory Committee of the BOPEE which shall be notified in the E-Brochure meant for each entrance test.

6.

Application Form.

- (I) The applicants for any Entrance Test to be conducted by the BOPEE shall have to submit online Application Form to be available on the official website of the BOPEE within the date and in the manner prescribed in the admission notification to be notified separately as and when required.

(II)

The Application Form which is wrongly filled or contains false information of any kind or is not having required and /or valid certificates/photographs or has any other deficiency will be rejected and the candidate who succeeds in obtaining admit card on the basis of such information will not be entitled to appear in the Entrance Test and/or selection for admission and shall be liable for prosecution under relevant laws.

(III)

The candidates should mention more than one telephone number in the Application Form for contacting him/her or his/her parents for communicating any message through SMS or otherwise.

(IV)

While the BOPEE will make all reasonable efforts to contact the candidate or his/her parents as and when required, it will not be responsible if any message is missed by the candidate for want of functional telephone numbers or has failed to attend the call made by the BOPEE official.

(V)

The candidates should ensure that in their own interest two or more functional telephone numbers and email ID are mentioned in the Application Form and those candidates who do not have an email ID are advised, in their own interest, to create one before the submission of online Application Form.

7.

Scheme of Examination.

- (I) The question paper will have four multiple choice questions, seriated as A, B, C and D, out of which only one option will be correct/most appropriate and for each correct response one mark will be awarded, unless otherwise specified for any examination.

(II)

The negative marking, if any, in the Entrance Test shall be notified along with other details separately in the admission notification to be issued by the BOPEE meant for the particular Entrance Test.

(III)

Each Question Paper Booklet is numbered and the candidates are advised to check the Question Booklet thoroughly.

(IV)

It shall be the sole responsibility of the candidate to check the Question Paper Booklet before attempting to answer any question.

(V)

Where a Question Paper Booklet has any missing page, blank page, missed question or damaged or defaced page, it shall be the responsibility of the concerned candidate to bring it to the notice of the concerned invigilator and get it replaced by a new Booklet of the same series. No complaint in this regard shall be entertained by the Board after the conclusion of the Entrance Test.

(VI)

The OMR Answer Sheets will be scanned by the machine and in case a candidate makes a faint or stray mark(s) or

ambiguous impression or incomplete mark in or around the oval on the OMR Answer Sheet, it shall be treated as a double shading and the result processed by the machine shall be final and not subject to any manual check.

(VII)

The candidates who have written wrong Question Booklet Series, Roll No. or Paper No. in ovals on the OMR Answer Sheet can make representation for required correction to the Controller of Examinations, J&K BOPEE within three days after the conclusion of the last meeting of the examination, after which no correspondence in this regard shall be entertained.

(VIII)

The representations shall be consolidated by the Board and will be examined by subject experts whose opinion will be final and binding.

(IX)

The revised Answer Key will be uploaded on the official website for general information, but no representation will be entertained against the revised Answer Key so that whole admission process is completed within the prescribed time schedule and does not protract endlessly.

(X)

The revised Answer Key will be applied for evaluation of all Answer Sheets, including Answer Sheets of those candidates who have not made any representation.

(XI)

Where a question has ambiguous language which admits more than one answer or has two answers, both answers shall be considered correct and the candidate attempting either of the two answers will be awarded a mark.

(XII)

Where none of the options given to a question is correct, the question will not be considered and no marks will be given to any candidate.

(XIII)

The subject expert(s) will be the sole judge to decide invalid questions and their decision will be final and no correspondence of the candidates in this regard will be entertained.

(XIV)

Where any situation other than that mentioned heretofore in these Regulations comes within the knowledge of the Board or is brought to its notice by any person(s) including candidate(s), the Board will take appropriate decision keeping in view all facts and circumstances as may be deemed just and necessary.

8.

Reserved category candidates.

- (I) A candidate can apply for one reserved category only and choice regarding reserved category once exercised shall be final and at no stage will be allowed to be changed.

(II)

No notice will be given to a candidate whose category certificate has been found invalid by the Board and such a candidate will be considered in open merit, if found otherwise eligible.

(III)

The benefit of reservation shall be available to the reserved category candidate only if the attested photocopy of the valid category certificate is uploaded/attached with the online Application Form/Confirmation Page and Category Code is given correctly by the candidate in the original online Application Form at the time of its submission.

(IV)

The invalid category certificate uploaded/attached with the online Application Form shall be rejected and no intimation in this respect will be communicated to the candidate and he/she will be considered in open merit, if found eligible.

(V)

Tuition Fee Waiver Certificate (TFW) will remain valid for a period of one year from the date of its issuance and will be applicable to both Diploma and Degree Engineering Courses only.

(VI)

Poor and Backward Category Certificate will remain valid for a period of one year from the date of its issuance and will be applicable in Medical Courses only.

9.

Central Pool MBBS Seats.

- (I) The Board is receiving Central Pool MBBS seats of varying numbers from Home and Health and Family Welfare Ministries Govt. of India, which have to be allotted in order of merit secured in the CET of that year to the candidates following in either of the categories specified in the order/instructions of the concerned Ministry of the Govt. of India issued from time to time.

(II)

The candidates seeking admission for MBBS from the Central Pool seats shall be required to submit the following documents shown hereinafter against each category : -

S. No.

Category

Documents required

Designated Authority

Authenticating Authority

1

2

3

4

5

1.

Children of Families where a parent or direct member of the family has been killed in acts of terrorism or has been an innocent victim in cross-firing or in firing by armed forces in combating terrorism.

FIR, Death Certificate, Postmortem Report and Affidavit that no other member of the family has got benefit of this category
SHO and Hospital Concerned Countersigned by SSP Concerned
Administrative Secretary to Government Department of Home Affairs

2.

Children of such persons who are exposed to substantive risk due to their assignment mainly related to combating acts of terrorism; added weightage is to be given to persons who have come in the hit list of terrorist organization.

Certificate of threat perception Affidavit that no other member of his/her family has got benefit of this category
DIG (CID) on the basis of the report received through proper channel initiated by the SHO concerned after receiving application from the person claiming benefit of this category
Administrative Secretary to Government Department of Home Affairs

3.

Children of such families of both Muslims and Non-Muslims who have migrated from Kashmir due to the current situation and have lost their means of livelihood including their business or use of their property

Certificate of Migration, loss of property, Business and livelihood Affidavit that no other member has got benefit of this category

Supporting documents for loss of Property (FIR etc.) Migrant certificate from the concerned Relief Commissioner
Administrative Secretary to Government Department of Home Affairs

Affairs

III. The seats for the Central Pool in Medical/Dental Colleges outside the State will be notified separately and recommendation of the candidates for selection will depend upon the seats made available by the Government of India/Government of other States and will also be subject to such conditions as may be prescribed by the State/Central Government.

10.

Mode of selection.

- (I) The selection of candidates to any Professional course will be made on the basis of merit obtained in the Entrance Test and where candidates are less or equal than the seats, the admission may be made on the basis of the merit secured in the qualifying examination.

(II)

Subject to the provisions of the J&K Reservation Rules, 2005 and the MCI/DCI Regulations, the minimum qualifying marks in the Entrance Test for candidates seeking admission to MBBS, MD/MS and PG Diploma and MDS Courses shall be 50% for Open Merit Category candidates including the Children of Defence Personnel, Children of Para-Military Forces, Children of State Police Personnel and candidates possessing outstanding proficiency in Sports and 40% for the candidates belonging to SC/ST & Other Back Classes.

(III)

An Open Merit category candidates other than those selected under item-I of Rule 15 of the J&K Reservation Rules, 2005, who have served for a minimum period of 5 years in 'Rural Area(s)' or worked in 'Difficult Area' for more than one year have to secure at least 50% marks in the Entrance Examination for selection to admission in MD/MS/PG Diploma/MDS Courses.

(IV)

The five years period in case of 'Rural Service' and at least one complete year in case of a candidate claiming benefit of working in 'Difficult Area' must have been completed by the candidate by or before the last date prescribed for submission of the Online Application Form for admission to MD/MS/PG Diploma/MDS Courses.

11.

Admit card.

- (I) The BOPEE shall issue separate notification in the two leading local English dailies of Jammu and Srinagar and on the official website for downloading of admit cards.

(II)

Admit cards will indicate venue, date and time of the Entrance Test and will have space for pasting photograph of the concerned candidate which should be attested by a Gazetted Officer.

(III)

No candidate will be allowed to enter the examination hall without a valid admit card.

(IV)

Where a candidate could not download his/her admit card for any reasons, he/she may report to the I.T section of the Board with the following documents : -

(a)

Photocopy of the Application Form/Confirmation page generated by the admission Portal ;

(b)

Copy of the Postal receipt if the Confirmation page was sent by Post ;

(c)

ID card of the Candidate ; and

(d)

Undertaking that he/she is a bona fide candidate on the format which will be provided by the I. T Section.

(V)

Candidates are advised to preserve their admit card for allotment of seat and completion of admission formalities in the allotted College.

12.

Entrance Test Centres.

- (I) The Entrance Tests will be conducted at Srinagar/Jammu in the centres to be constituted by the Board from time to

time.

(II)

The candidates shall have choice to appear in the Test Centre either constituted at Srinagar or Jammu but once this option is exercised, it cannot be changed accordingly.

(III)

The test centres constituted at Jammu or Srinagar shall be allotted by the Board and candidates have no choice in this regard.

13.

Conduct of examination.

- (I) The Entrance Test will be conducted on the notified venue, date(s) and time, unless there is an exigency necessitating its change.

(II)

Where for any reason the venue, date or time of the Centre is changed such change will be notified at official website and in two leading local English Newspapers having wide circulation in the State.

(III)

Candidates should report at the examination Centre 35 minutes before the schedule time for commencement of the Test.

(IV)

No. candidate will be allowed to enter the examination hall 30 minutes after commencement of the examination.

(V)

Candidates should not carry any textual material, printed or written, bits of papers, or any other material except the admit card inside the hall.

(VI)

Where a candidate is found copying/conversing with other candidate(s)/or is in possession of papers, notes, books, calculators, slides, rules, cell phones, pendrives, buletooth devices, I pods, tablet, electronic watch with facility of calculator, Spy camera etc., he/she may be disqualified from appearing in the current examination by the Superintendent of the concerned centre in consultation with the Chief Superintendent, Member Monitoring Squad and/or Govt. Observer and in case of their disagreement, the decision of the majority will prevail and his/her further disqualification for future or any criminal prosecution, if any, will be decided by the Board.

(VII)

Candidates shall maintain silence in the examination hall and attend to their papers only and any disturbance in the examination hall shall be deemed as misbehavior and the candidate(s) shall forfeit the right to continue to write the examination which shall be decided in the manner as prescribed in the foregoing clause.

(VIII)

Bringing of mobile phones, electronic watch with facility of calculator, pen devices ipods, MP3 players, Bluetooth/Spy camera, pagers calculators or any such electronic gadgets to the examination hall is prohibited and if anyone happens to bring any of these items, the same should be deposited outside the examination hall solely at the risk and responsibility of the concerned candidate.

(IX)

No candidate will be allowed to leave the examination hall until expiry of the full allotted time for the paper except where due to ill health it will be extremely difficult for the candidate to stay in the hall and in such case he/she will be allowed to leave the hall without question booklet which can be collected by him/her or by his /her representative only after the Test is over.

(X)

Where a candidate fails to report back within the reasonable time after attending natural call, he/she will not be allowed to write the examination.

(XI)

A candidate is required to mark responses himself/herself in the Answer Sheet but where a candidate is unable to mark his/her response on the Answer Sheet because of some accident or any other handicap, he/she can be provided a scribe who shall be arranged by the Board only after receiving written request from the candidate or his/her representative at least one day before the commencement of the Test.

(XII)

Smoking, taking tea or any other refreshment in the examination Hall/Room is strictly prohibited.

14.

Arrangement in test centres.

- (I) The centre statement showing the venue, seating plan and roll number-wise breakup of the candidates shall be supplied by the Controller of Examinations to the Chief Superintendent/ Chief Coordinator of the Centre who in turn shall distribute them to the Centre Superintendents/Deputy Superintendents before the date of the conduct of Entrance Test.

(II)

The seating plan shall be displayed at prominent places for the convenience of candidates, particularly on the main gate of entrance in the Test Centre and only such supervisory staff will be put on duty who fulfill the conditions contained in Form II to V annexed with these regulations and provide the necessary certificate on prescribed Form to the Control Room Incharge appointed by the BOPEE.

(III)

At least one day before the commencement of examination, the Chief Superintendent and Coordinator shall ensure proper seating arrangement for the candidates at the centre(s) situated in his/her institution.

(IV)

The seats shall be so arranged as to provide about two square meter of space to each candidate, leaving enough room for movement of the supervisory staff.

(V)

The seating plan must be prepared in such a way that seats are arranged serially and the number of seats in each row shall be 6 or 10 or 14 or 18 or 22 or 28 i. e., any number divisible by 4 and leaving remainder of (2) so that no two candidates sitting on adjacent seats get the same series of Question Booklets.

(VI)

A copy of the seating plan and instructions for the candidates should be made available to all the Centre Superintendents and the instructions meant for the candidates must be read out to them loudly before the commencement of the Test.

(VII)

The Coordinator/Chief Superintendent will ensure that correct roll numbers are written on desks and the concerned Superintendent will ensure that the candidates have occupied the allotted seat .

15.

Delivery of material.

- (I) The Controller of Examinations will assign two senior officials of the Board, each from Srinagar and Jammu, the duty of handing over all required printed material including, a copy of Guidelines/Instructions for conduct of Entrance Test, Roll Nos. of the allotted candidates, room-wise seating plan, copies of the certificates to be signed by the officials engaged for the conduct of Entrance Test and Centre Statement to the Coordinator/Chief Superintendent of the concerned centre in Jammu and Srinagar at least two days before the date fixed for the Entrance Test.

(II)

It shall be the responsibility of the nominated officials to prepare a checklist of the requirements and the material handed over to the Coordinator/ Chief Superintendent.

16.

Distribution of examination material.

- (I) The Controller of Examinations will identify Control Room incharges for each Test Centre amongst the officials of the BOPEE and Assistant Professors/Lecturers from the Universities/Colleges/Intermediate Colleges and Orderlies to assist the Control Room Incharges.

(II)

The Controller of Examinations will allot a Test Centre, a Vehicle and an Orderly to each Control Room Incharge.

(III)

Each Control Room Incharge will collect sealed trunks and their keys containing Question Paper Booklets, OMR Answer Sheets and Attendance Sheets from the Collection Centre from the authorized representative of the BOPEE and sign a certificate that the trunks are locked and sealed.

(IV)

Where there is any such trunk without lock and/or seal or the trunk is broken during transit, the Control Room Incharge shall report it immediately to the Controller of Examinations and shall wait for his/her further instructions.

(V)

The Control Room Incharge shall be solely responsible for safe carriage of the test material at the appoint Test Centre.

(VI)

The Control Room Incharge will handover the sealed trunks to the Coordinator who will sign a prescribed certificate that the trunks received by him/her are locked and sealed.

(VII)

The seals and locks of the trunks shall be opened by the Chief Superintendent in presence of Coordinator, Member Monitoring Squad and Government Observer (wherever appointed) who will sign the prescribed certificates that they have found trunks locked and sealed.

(VIII)

Where a trunk is either not sealed or locked properly or is broken, it shall be reported by the Chief Superintendent to the Controller of Examinations and wait for his/her instruction who will pass appropriate instructions forthwith.

(IX)

The Chief Superintendent shall take out Question Booklets packets, OMR Answer Sheets and Attendance Sheets from the trunks and handover them to the Centre Superintendents as per their allotment and will retain Buffer Question Booklets and OMR Sheets.

(X)

The Superintendent along with his invigilating staff will sign prescribed certificate stating that the packet containing Question Booklets were found sealed and shall count the Question Booklets and Answer Sheets to ensure that their number is the same as the number of the candidates for each centre and discrepancy, if any, shall be reported to the Board immediately.

(XI)

Time schedule given in these regulations to ensure timely distribution of question papers in the Test Centre and collection of OMR Answer Sheets has to be strictly followed.

(XII)

The Answer Sheet shall be issued to the candidates 10 minutes before the distribution of Question Booklets and the Invigilating staff shall make repeated announcement in the Test Centre that the candidates should ensure that they have filled all the particulars viz, Name, Roll No. etc. on the Answer Sheets correctly.

17.

Norms for engagement of staff.

- (I) The Chief Superintendent along with other invigilating staff shall have to sign a prescribed 'No Relation Certificate' (Forms II-V annexed with these regulations).

(II)

The deployment of the Invigilators should be rotated in such a manner that it does not allow an Invigilator to remain incharge of the same group of candidates for more than one session/shift.

(III)

The Supervisory staff should reach the Centers of examination at least one hour before the commencement of the examination on the first shift and 45 minutes earlier for the subsequent shifts to acquaint themselves with the procedure.

(IV)

The Chief Superintendent shall ensure that the Invigilating staff is made fully aware of responsibilities before taking up their duties in the examination.

(V)

The Chief Superintendent should ensure that no staff is engaged with Test who's any relation is appearing at the same Centre.

(VI)

The staff for each Centre shall be detailed in the manner and to the extent reflected hereinafter : -

(A) Staff to be engaged for each Centre

constituted in a College/Institution/School :

S. No.

Designation

Number allowed

1.

Chief Superintendent

(01)

2.

Coordinator

(01)

3.

Superintendent

(01)

4.

Deputy Superintendent

(01)

5.

Assistant Superintendent

(01)

6.

Invigilator

1 (For every 20 students)

Invigilator Guide

Class IV (4 persons per centre) i. e., (i)

Daftari (ii) Sweeper (iii) Chowkidar (iv) Waterman

1 (For every 300 students)

(B) Staff to be engaged for each Centre

constituted in a University/NIT :

S. No.

Designation Number

Number allowed

1

2

3

1.

Chief Coordinator

(01)

2.

Coordinator

(01)

3.

Superintendent

(01) For each Deptt./Centre/Examination Hall.

4.

Deputy Superintendent

(01) For each Deptt./Centre/Examination Hall.

5.

Assistant Superintendent

(01) For each Deptt./Centre/Examination Hall.

6.

Invigilator

1 (For every 20 students)

Waterman

(01) For each Deptt./Centre/Examination Hall.

Daftari

(01) For each Deptt./Centre/Examination Hall.

(C) Honorarium for Supervisor Staff :

S.No.

Designation

For the day of (Preparatory day) Rs.

For the day of Examination Rs.

1.

Chief Coordinator

400

700

2.

Chief Superintendent

300

600

3.

Superintendent

300

450

4.

Deputy Superintendent

300

350

5.

Asstt. Superintendent

200

250

6.

Invigilator

250

300

(D) Honorarium for other Supporting Staff :

S.No.

Designation

For the day of arrangement

For the day of

(Preparatory day) Rs.

Examination Rs.

1.

Coordinator

500

400

2.

Control Room Incharge

-

900

3.

Invigilator Guide

150

200

4.

Class IV

150

100

(E) Appointment and Honorarium for Member

Monitoring Squad : -

i. The Board shall appoint a Member Monitoring Squad for each centre constituted in the College/Institute/School and as many Members for the Centres constituted in the Universities as may be deemed proper to supervise the conduct of the Entrance Test ;

ii. The Member Monitoring Squad shall not be less than a rank of a Professor of a University/NIT/IIT/IIM or Principal of any Govt. College ;

iii. An honorarium of rupees 1000 per session and rupees 500 and Rupees 150 per day as conveyance and refreshment charges shall be paid to the Member Monitoring Squad.

(F)

Appointment of Govt. Observer : The BOPEE shall write to Govt. for appointment of its observers in advance to oversee the conduct of the Entrance Test for admission to MD/MS/PG Diploma/MDS and CET who shall ordinarily be not below the rank of Additional Secretary who will be paid honorarium by the Board and conveyance, wherever required, by the Board.

(G)

Miscellaneous Charges : -

S. No.

Designation

For the day of arrangement (Preparatory day)

For the day of Examination

1.

Up to 3 Centers

-

Rs. 400

2.

4-7 Centers

-

Rs. 500

3.

8-10 Centers

-

Rs. 700

4.

Above 10 Centers

-

Rs. 800

(H)

Seating arrangement charges : - for each centre Rs. 250/-

(I)

Refreshment Charges : - Refreshment charges of rupees 150 each per day will be paid to the supervisory staff including control room in-charges engaged for conducting the Entrance Test.

(J)

Notwithstanding anything contained in the foregoing change, the Board may modify/change the honorarium or charges payable to any Institution/Centre or person/staff.

18.

Appointment of Chief Superintendent/Chief Coordinator.

- The Head of the Institution or his/her nominee shall be the ex-officio Chief Superintendent for the Centre constituted in

that institution and the Controller of Examinations of the University/NIT shall be ex-officio Chief Coordinator for the Centres constituted in that University/NIT who shall be overall incharge of all the Centers constituted in that institution and answerable for any lapse in his/her Centre and shall : -

- I. nominate Coordinator who shall in turn liaise with BOPEE for making or responding any correspondence ;
- II. designate a well guarded and spacious room, having sufficient light, as a Control Room which will be used for opening of the sealed trunks containing confidential material in presence of the concerned officials and distribution and maintaining account of used and unused test material ;
- III. work in close coordination with the Coordinator nominated by him /her, Member Monitoring Squad appointed by the BOPEE, Government Observer as and when appointed by the Govt. to ensure hassle free conduct of the Entrance Test ;
- IV. brief the staff about the conduct of Entrance Test one day before its commencement and shall take all the necessary measures to ensure its smooth conduct ;
- V. ensure that the time schedule prescribed for the conduct of the Test, is followed strictly for each shift on each day ;
- VI. ensure that proper account of used and unused Question Booklets and OMR Answer Sheets is maintained ;
- VII. direct that the absentee memo is correctly maintained ;
- VIII. see to it that the Superintendents have made repeated announcements in the Test Centres about the possibility of any missing /blank/ damaged page in the question paper or damaged/defaced OMR Sheet which is to be replaced from the buffer available in the Centre ; and
- IX. ensure that the unused Question Booklets and OMR Sheets are sealed by the Superintendents within ten minutes after the commencement of the test in each session.

19.

Appointment of the Coordinator.

- (I) The Coordinator shall be nominated by the Chief Superintendent/ Chief Coordinator who may be a member of the teaching or non-teaching faculty but not less than a Gazetted Officer necessarily working on substantive basis in the institution housing the Centre.

(II)

The Coordinator shall remain in close contact with the Controller of Examinations of the BOPEE and attend meetings as and when convened and shall oversee arrangements in his/her centre.

(III)

The Coordinator shall remain available in his/her Centre when the Tests material reaches in his/her centre and shall stay back till the conclusion of the Tests.

(IV)

The Coordinator shall ensure that the used as well as unused test material is properly accounted for and is sealed in packets that are signed by all the designated officials and the packets are handed over to the Control Room Incharge.

(V)

The Coordinator shall get the certificates appended with these regulations signed by the concerned officials, Chief Superintendent/Chief Coordinator/Superintendents, Deputy Superintendents and invigilators and then sign himself/herself, wherever required and then handover these certificates to the Control Room Incharge.

20.

Superintendent.

- The Superintendent of the Test Centre shall make foolproof arrangements to ensure that the sanctity of the test is not compromised and shall be solely responsible for his/her centre to ensure that the-

- I. Entrance Test is efficiently and effectively conducted ;
- II. candidates have occupied the seats allotted to them as per the seating plan ;
- III. candidates possess their Admit Cards issued by the Board and no candidate is allowed to appear in the Test unless his/her identity is ascertained by some valid identity proof and the matter is reported to the Controller of Examinations immediately without any undue delay ;
- IV. Examination rooms/halls are opened only when the candidates are required to report there as per the time schedule already notified; and no candidate is allowed to enter the Hall before the specified time or ten minutes after the distribution of Question Booklets ;
- V. Candidates do not leave the hall before the prescribed time ;

- VI. if any anomaly or a wrong question is pointed out by any student in the examination hall, no correction or alteration in the question shall be announced by the Chief Superintendent, Superintendent or any staff on duty ;
- VII. Candidates are allowed to leave the Hall only after handing over their Answer Sheets to the invigilating staff and any lapse in this behalf on the part of the concerned Supervisory Staff shall be proceeded against and penalized under law ;
- VIII. candidate puts his/her signature at the prescribed place on the Answer Sheet after fully satisfying himself/herself that he/ she has darkened the Roll No. and allotted Series of Question Booklet in oval on OMR Answer Sheet correctly ;
- IX. the Answer Sheets are arranged in order of roll numbers and packed properly in accordance with the instructions given in these regulations before handing them over to the Control Room Incharge ; and
- X. the punctuality in the conduct of examination is maintained.

21.

Deputy Superintendent.

- He/She shall ensure that the announcements are made in the examination Halls/Rooms that all the candidates should write their Roll Nos., Questions Booklet Series and certificate correctly and should put their signatures, wherever required.

22.

Assistant Superintendent.

- (I) Assistant Superintendent shall assist the Superintendent and ensure the facilities, as mentioned in the regulations, are made available in the examination hall to the students and provide all the assistance to the Superintendent but should not involve himself/ herself in the actual conduct of the examination.

(II)

He/she should get all the prescribed certificates signed by the concerned officials and shall maintain accurate account of used and unused Question Booklets and OMR Answers Sheets.

23.

Invigilators.

- (I) Allotment of candidates to the invigilators should be such as to enable them to have an effective check on candidates from various angles of the hall/room.

(II)

The invigilators will ensure that-

(a)

the announcement is made to the candidates to write their roll numbers on the Answer Sheet/Question Booklets Series correctly ;

(b)

the candidates do not write anything else on the Answer Sheets ;

(c)

the candidates do rough work on the sheets provided for the purpose in the Question Booklets ;

(d)

the candidates sign at the space on the Answer Sheets provided for this purpose ;

(e)

no candidate uses or attempts to make use of unfairmeans in the examination ;

(f)

no candidate under his/her charge leaves the hall/room without handing over the Answer Sheets ; and

(g)

no candidate leaves the hall/room till the prescribed examination period is over.

24.

Invigilator guides.

- They will guide the candidates to their respective Examination Halls and will maintain the discipline outside the Examination Halls.

25.

Waterman/Water Women.

- All arrangements for drinking water must be made by the waterman/woman appointed for this purpose before the commencement of the examination and no waterman/woman should leave the hall/room during the course of

examination.

26.

Duties of the supervisory staff.

(1)

The Chief Superintendent/ Chief Coordinator in consultation with the Coordinator of the Centre shall engage Supervisory Staff.

(2)

The supervisory staff to be engaged should have an unblemished record of honesty, integrity and probity who shall ensure that-

a. the candidates appearing at their centre of examination do not bring with them books, calculators, mobile phones, MP3 players, pagers, Bluetooth, Spy cameras, electronic watch with the facility of calculators, pen drives etc. or any other material aid into Examination Hall/Room ;

b. necessary arrangements including supply of clean drinking water, fans, headings etc. for smooth conduct of entrance examination shall be made well before the commencement of the Entrance Test ;

c. before the commencement of the examination that only genuine candidates are sitting in the examination centre and no individual is impersonating for any candidate ; and

d. shall record a certificate to the effect that there is no proxy candidate sitting in the examination centre (Form VIII).

27.

Examination material to be supplied to the candidates.

- Candidates are to be supplied with the following items after they occupy their allotted seats : -

(I)

Answer Sheets-

(a)

The Answer Sheet will be issued to the candidates 15 minutes before the commencement of the examination to enable them to put in all the required information on the Answer Sheet ;

(b)

Any defective Answer Sheet should be got changed immediately ; and

(c)

The candidate should darken the correct circle with blue or black ball point pen.

(II)

Question Booklets :

(a)

The distribution of Question Booklets will be ensured at the proper time as per the time schedule ;

(b)

In case of any defect, misprint or duplication of questions noticed by the Supervisory Staff or reported by the candidate, such Question Booklets has to be replaced by new Question Booklet of the same series free from such defect ;

(c)

Each Question Booklet has one of the four series (which are in the alphabets of A, B, C and D) printed on the cover page ;

(d)

The Question Booklets are to be distributed in vertical rows, five minutes before commencement of the examination to all the allotted Roll Nos. whether a candidate has reported in the Test Centre or not ;

(e)

A specimen plan of distribution of Question Booklets to the candidates is indicated hereinafter : -

Seat

1st Row

2nd Row

3rd Row

4th Row

5th Row

6th Row

1st Seat

A

C

A

C

A

C

2nd Seat

B

D

B

D

B

D

3rd Seat

C

A

C

A

C

A

4th Seat

D

B

D

B

D

B

5th Seat

A

C

A

C

A

C

6th Seat

B

D

B

D

B

D

(II)

Attendance Sheet :

The Attendance Sheet shall be given to each candidate to mark his/her attendance and then to be collected back.

28.

Instructions for Invigilators.

- The Invigilators should carefully read the following instructions and follow them strictly and any lapse in this regard will be viewed seriously : -

I. Invigilators are advised not to bring their mobile phones inside the Examination Hall ;

II. The candidates should be allowed to enter the Examination hall only 35 minutes before the schedule time of

examination and should be asked to take their allotted seats as soon as they enter ;

III. The Invigilators should ensure that candidates leave their reference books, electronic calculators, mobile phone, pagers, pen drives, slide rules etc. outside before entering the Examination Hall and under no circumstances should any books, calculators, slides rules, cell phones, pen drives etc. be allowed to be kept inside the Hall ;

IV. The candidates should not be allowed to carry with them in the Examination Hall pagers, mobile phones or any other electronic equipment(s) or device(s) which can be used as a communication device ;

V. No candidate shall be admitted to the examination hall 10 minutes after the distribution of Question Booklet ;

VI. No candidate shall be allowed to leave the Examination Hall until expiry of the full allotted time for the paper ;

VII. The Invigilator(s) have to make repeated announcements about the time left for the conclusion of the test and for candidates to check whether they have written correctly the Answer Sheet Number, the Question Booklet Series and Roll No. and have put signature and left hand thumb impression in the relevant columns of the Answer Sheet ;

VIII. The Invigilator should put his/her own signature in the relevant space in token of confirmation of the identification of the candidate ;

IX. If the Question Booklet issued to a candidate is found to be defective, the Invigilator should get it replaced by other Question Booklet of the same series immediately free from such defect ;

X. The unused Question Booklets are required to be sealed immediately within 10 minutes of commencement of the examination of each session.

XI. The Invigilator should ensure that no candidate uses unfair means in the examination ;

XII. Do not entertain any query from the candidates regarding questions asked in the paper ;

XIII. The Invigilator should advise the candidate in case of any doubt raised by him/her to make a written representation to the Controller of Examination, BOPEE through Chief Superintendent of the Centre immediately after the conclusion of the examination ;

XIV. A candidate is required to mark responses himself/herself in the Answer Sheet ;

XV. The Invigilator should promptly attend to the requests of the candidates for supply of drinking water and permissible means of stationary ;

XVI. When a candidate desires to go to the urinal/washroom, one of the Invigilators should accompany him and if the candidate is female, a female Invigilator should accompany her and it should be further ensured that while going to the urinal/ bathroom, the candidate does not take with him/her the Question Booklet or Answer Sheet.

XVII. While within the urinal/bathroom, the Invigilator should ensure that the candidate comes out within reasonable time and doesn't leave any scope for suspicion ;

XVIII. More than one candidate must not be allowed to go the urinal at the same time ;

XIX. If a candidate slips away from the urinal, he/she will not be allowed to take examination and the case be referred immediately to the Superintendent/Chief Superintendent in writing ;

XX. Invigilator should carefully note that copying or photocopying of any items or page of the Question Booklet, either by the candidate or by the examination functionaries, including the Superintendent or the Invigilator or by the Inspecting Officer/ Observer of Board/State Government or any other authority allowed to visit the examination venue, is strictly prohibited during the examination ;

XXI. Smoking, taking tea or any other refreshment in the Examination Hall/Room is strictly prohibited ;

XXII. Invigilators are not expected to sit on the tables or engage themselves in conversation with other Invigilators during the Examination ;

XXIII. Invigilators should refer the cases of doubt to the Superintendent immediately ;

XXIV. After the collection of Answer Sheet, the Invigilator should without loss of time approach the Superintendent for handing over the Answer Sheets ;

XXV. Invigilators should not leave the examination venue till the Answer Sheet are counted and packed by the Superintendent after conclusion of the examination and without the express permission of the Superintendent ;

XXVI. Invigilators must ensure that each candidate has written the number of questions attempted by him/her at the proper space provided for this purpose in the Answer Sheet, overwriting/ mutilation is not allowed.

29.

Instructions for the candidates to be announced in the Examination Hall by the Superintendent.

- (I) A copy of "Instruction for the Candidates" shall be pasted outside the Examination Hall at a prominent place and shall also be announced in the hall/room by the concerned Superintendent.

(II)

The instructions are,-

(a)

the candidates can take Question Booklets with them after the conclusion of the Test ;

(b)

the candidate shall be disqualified from the entrance examination if he/she uses or attempts to use unfair means in any manner or attempt to disrupt conduct of the entrance examination ;

(c)

the criminal prosecution shall be launched against the candidate if he/she resorts to cunning stratagem of impersonation and shall be debarred from appearing in the entrance examination permanently for any future entrance examination as may be decided by the Board ;

(d)

that the candidate will be disqualified from the entrance examination for disregarding any of these instructions ; and

(e)

the candidates should strictly follow the instructions given in the Admission Notification, E-Brochure, BOPEE Rules, 2014 and in these Regulations.

(III)

The Candidates will ensure that-

a. they don't bring into the Examination Hall any materials such as books, printed or hand written papers relevant to the subject/ question papers, calculators, mobile phones, pen drive, pagers, bluetooth, spy camera, table watches with calculating facilities, pen drives etc. ;

b. they occupy the seats allotted to them as per the seating plan ;

c. the Answer Sheets and Question Booklets supplied to them are perfectly in order and where a Question Booklet is having blank/missing/damaged page or missing question, it shall be the sole responsibility of the candidate to bring it to the notice of the supervisory staff and get it replaced by the same series ;

d. the entries on the Answer Sheets like date of birth, signature of the candidates, signature of the Invigilator, signature of the Superintendent, booklet number, booklet series number, subject code, roll number etc. are made with a blue or black ball point pen and it shall be the sole responsibility of the candidate to ensure that these entries are correctly made and any lapse in this regard on the part of the candidate will not make the Board in anyway responsible and the candidate will not have any right to claim any benefit which he/she may lose because of such lapse ;

e. the Question Booklet is not opened until so instructed by the Superintendent of the centre ;

f. all rough work is done on the sheets provided in the Question Booklets and marked as "Sheets for Rough Work" ;

g. as soon as the supervisory staff announces that the time is over, they will stop writing and will keep Answer Sheet ready for handing over to the concerned Invigilators ;

h. the candidates should write the number of questions attempted by him/her at the space provided on the Answer Sheet and overwriting/mutilation is not allowed ; and

i. the candidates shall leave the Examination Hall only after expiry of the prescribed time of examination and after they have handed over Answer Sheets.

30.

Instructions for packing of used Answer Sheets.

- The Supervisory staff shall,-

I. arrange the Answer Sheet Roll No. number-wise ;

II. count and tally the total number of used Answer Sheets with the number of candidates present ;

III. make the packs of 100 each (the pack containing the balance 1-99) and place one cardboard above and one below each pack and fastened with rubber bands ;

IV. keep two packs in each envelope specially provided for this purpose ; and

V. seal each envelope with brown tape.

31.

Guidelines for Observers.

- (I) Observers are required to reach the examination venue well in the time to check seals of the Question Booklets and ensure that the,-

(a)

Question Booklet packets for each paper are opened only 20 minutes before the commencement of the examination and not earlier ;

(b)

photocopier, fax machine, computer or electronic gadgets, if any, in the Examination Hall are not used during the course of the examination ;

(c)

Library(ies) in the centre remains closed during the examination ;

(d)

unused Question Booklets for each paper are collected from the rooms within ten minutes after the commencement of the examination ;

(e)

used/unused Question Booklets are not taken away by anybody during examination outside the Examination Hall and paper seals of unused Question Booklets are not broken by any person at the centre ;

(f)

printed/written material is handed over by the Centre Superintendent or his/her authorized representative to the representative of the Board at the examination centre or collection centre, as the case may be, in their presence only ; and

(g)

guidelines with regard to conduct of the test are fully observed by the Chief Superintendent/Superintendent/ Dy. Superintendent/Asstt. Superintendent/Invigilators.

(II)

During the course of examination, Observer(s) will take round(s) of the Examination Halls/rooms to ensure fair conduct of the examination and verify the number of candidates present in each room as per the attendance sheets and also ensure that the seats of the absentee roll number are not allotted to any of the candidate taking the test.

(III)

Observers must be present at the time of the packing of Answer Sheets and ensure that the whole process of packing of the Answer Sheets is strictly done as per the regulations of the Board and will certify that the packing has been done in their presence.

(IV)

Observers will send their reports about the conduct of the test to the Govt. under intimation to the Chairman of the J&K Board of Professional Entrance Examination.

32.

Duties of the Members of the Entrance Test Monitoring Squad.

- The Members of the Monitoring Squad have to-

I. Be present in the Test Centre assigned to them at least half an hour before the commencement of each session on the day of the test and to establish contact with the Chief Superintendent/ Chief Coordinator of the centre ;

II. ensure that the seating arrangements have been made properly in test centers ;

III. ensure that persons who are not connected with the examination are sent outside the premises of the examination centre ;

IV. confirm that the persons who are working inside the examination centre are the one actually appointed for the examination purpose ;

V. ensure that only actual candidates are taking examination in test centers and no impersonator or fake candidate is sitting and or writing the examination and this purpose member of the Monitoring Squads should themselves verify photos and signatures of few candidates in each room on random basis ;

VI. visit and take frequent rounds in the Examination Halls/rooms so that Invigilators and others on duty remain alert and there is effective supervision of the examination and during such rounds confirm that-

(a)

the Invigilators have checked the particulars written by the candidates on Answer Sheets/Question Booklets ; and

(b)

the Invigilators have carefully checked identity of the candidates.

VII. verify the Signatures, Photographs and Admit Card of a candidate or candidates in case of any doubt about an impersonation case ;

VIII. ensure that entrance test is administered under standardized condition and in a fair manner ; and

IX. after the completion of the test submit a brief report about the conduct of the test in their respective examination centers to the Secretary, Board of Professional Entrance Examinations.

33.

Time Activity Schedule of Entrance Test.

- The Chief Superintendent/Chief Coordinator, Superintendent, Deputy Superintendent, Assistant Superintendent, Invigilators, Observers and Members of Monitor Squad must carefully go through the time activity schedule given hereinafter and adhere to it for smooth conduct of the Entrance Test : -

S. No.

Time

Tasks

1

2

3

1.

45 minutes before start

(a) Chief Superintendent/Chief Coordinator to obtain no relation examination certificates from the members of the supervisory staff (First shift only).

(b) Superintendent to collect the packets of the Answer Sheets from the Chief Superintendent/ Chief Coordinator.

(c) Invigilators to move to their duty hall /room.

(d) Invigilators to check seating arrangement and roll numbers of the candidates allotted to them.

(e) Opening certificates to be completed.

2.

35 minutes before start

(a) Candidates will be allowed entry into the Examination Hall/room after checking their Admit Card.

(b) The candidates to sit on the allotted seats.

(c) Supervisory staff, Superintendent, Dy. Superintendent, Asstt. Superintendent and Invigilators verify the identity of the candidate by comparing their facial features with the Photograph on the attendance sheets and the Admit Cards as well as by checking their facsimile signature on the Admit Cards. They have to ensure that only genuine candidates are sitting in the Examination Hall and there is no proxy candidate sitting there.

(d) Invigilators to check that the candidates do not bring into the hall any printed or handwritten material, mobile phones, calculators, electronic watch with facility of calculators, slide rule, any form of table or any other material relevant to the paper.

3.

15 minutes before start

(a) Answer Sheets to be distributed among the candidates.

(b) Candidates to complete all columns given at bottom of the Answer Sheet.

(c) Defective Answer Sheets, if any, to be got replaced

immediately.

(d) Both the Invigilators and the Superintendent to sign on the Answer Sheet in the space provided for the purpose.

4.

5 minutes before the start of examination

(a) Question Booklets to be distributed among the candidates with the instruction not to open seals of Questions Booklets till they are directed.

5.

Zero time start of examination

(a) Candidates to open the seals of Question Booklets and start attempting the questions.

(b) Defective Question Booklets to be got replaced within 5 minutes.

6.

5 minutes after the start of examination

(a) Invigilators to check and once more to ensure that there is no impersonation case.

(b) Invigilators to make absentees on the Attendance Sheet.

(c) BOPEE representatives also to check photos and signature of a few candidates randomly to ensure that no proxy candidate is writing the examination.

(d) Question Booklets of the absentees to be returned to control room by one Invigilator. The other Invigilators to remain present in the room.

7.

When half the time is over

(a) Superintendent to announce that "half the time is over".

8.

10 minutes before the time is over

(a) Superintendent to announce is over "only 10 minutes left".

(b) It is to be checked whether the candidate have put their signatures on the Answer Sheets.

9.

When the time is over

(a) Superintendent to make announcement "Time is over".

(b) Invigilators to collect Answer Sheets from the candidates and hand over the same to the respective centre Superintendent,

(c) Superintendent and Asstt. Superintendent, to complete the attendance sheets.

(d) After the conclusion of the examination, Chief

Superintendent will take over the used Answer Sheets after tallying the total number thereof with the number of candidates present and get them packed in accordance with the packing instructions.

34.

Announcements to be made.

- (I) After the candidates have taken their seats, the following announcements will be made in each hall/ room by one of the Invigilators : -

"Attention please, you should ensure that you have no unauthorized books or papers or calculators or pagers, cellular or mobile phones or any other electronic equipment or device or any other equipment capable of being used as a communication device with you or in your desk. Any infringement of the above instruction shall entail disciplinary action and ban on future examination".

(Candidates to be given some time to keep the things at the specified place at the entrance of the premises under the charge of a watchman) :

"You will soon be given answer sheets, carefully check the answer sheets supplied to you and make sure it is not damaged/ defaced/ mutilated or torn, but is properly printed, if defective in any other respect, get it changed".

(II)

The Invigilator will now distribute the Answer Sheets to the candidates and announce,-

"Take up your answer sheets and fill in with a blue/black ball point pen in the top list of the answer sheets-

(i)

Name of the centre ;

(ii)

Name of the subject ;

(iii)

Subject code ;

(iv)

Your roll number exactly as it is given in your Admit Card encode the subject at the appropriate space provided for the purpose in the answer sheets for encoding do the encoding according to the instructions."

(III)

Allow sometime to the candidates for this purpose and after pause Invigilator to announce,-

"You will shortly be getting the Question Booklet, you should not open the question booklet until the signal for the commencement of the test is given, as soon as you receive the Question Booklets, please make sure that it relates to the subject to which you have been admitted, write your roll number with ball point pen in the space provided for the purpose on the cover of the test booklet, read the directions printed out".

(IV)

Give candidates some time to do so and thereafter announce,-

"Make Sure"-

(a)

you have written with black/blue point pen your roll number correctly on the cover of the question booklets ;

(b)

encode the Question Booklet series in the appropriate circle provided for the purpose in the answer sheet and write the series of the Question Booklet in the box provided in the answer sheet."

(V)

After expiry of 10 minutes from the commencement of the examination in each session, each Invigilator should move from candidate to candidate under his/her charge and check for the following documents of the candidates and verify that the candidate(s) has,-

a. indicated the series of Question Booklet, Roll Number and that he/she has encoded Booklet Series, Subject and roll number on the Answer Sheet ;

b. put his/her initials with blue/black ball point pen on the Answer Sheet ;

c. put his/her thumb impression on the space specified for this in the Answer Sheet ;

d. written his/her Roll Number on the Question Booklet with blue/black ball point pen ; and

e. under his/her charge have signed the Attendance Sheets.

(VI)

At half-time following announcements shall be made : -

"Half the Times is over".

(VII)

The following announcements shall be made when 10 minutes are left :

"Only ten minutes are left".

(VIII)

At this time, doors should be closed and nobody should be allowed to leave the Examination Hall/Room for any purpose.
(IX)

When the time is over, the Invigilator shall announce,-

"Time is over, stop marking, close your Question Booklet and remain in your seats till Answer Sheets of all the candidates have been collected and accounted for".

(X)

Invigilators will then collect Answer Sheets and verify that everything has been collected and is in order. The Invigilator may please note that they will be personally held responsible for the loss or misplacement of any Answer Sheet(s).

35.

Declaration of Result.

- (I) Results of the Entrance Examinations will be published at official website www.jakbopee.org.

(II)

There is no provision for rechecking/reevaluation of the Answer Sheets and no query on the subject will be entertained.

(III)

Re-totaling of marks will be allowed on written request along with a payment receipt at POS Terminal installed in BOPEE Office, Srinagar/ Jammu or Bank Draft of Rs. 1000/- per subject in favour of FA/CAO, BOPEE payable at Jammu/Srinagar and it will be received within 3 days after the declaration of result. Any application received after the stipulated time will not be entertained.

36.

Counselling and Admissions.

- (I) The seat matrix will be uploaded on the official website www.jakbopee.org and the candidates can represent against the seat matrix within three days from uploading and no correspondence on the subject matter will be entertained after expiry of stipulated period.

(II)

Dates of counselling will be published at the official website of BOPEE and candidates are advised to keep visiting website www.jakbopee.org for updates on counselling.

(III)

No separate call letters or messages will be sent.

(IV)

Admissions will be made strictly on the basis of availability of seats and as soon as the seats are filled, admission will be closed and mere reason that a candidate was present on the date of counselling will not confer any right on him/her for a seat.

(V)

Admissions will be on the basis of the ranks of candidates present at the time of allotment on the date of counselling/allotment.

(VI)

Candidates desirous of admission should report to the respective College on the date/time mentioned in the notification at the website.

(VII)

If a candidate arrives late for counselling and seats get allotted to subsequent rank holders, he/she will have no right over the seats allotted to lower rank holders and failure to report in time on the date fixed for counselling can result in a candidate forfeiting his/her chance for admission.

(VIII)

In the event of appeals, decision of the Chairman on the matter shall be final and binding.

(IX)

The candidates have to appear personally for counselling if however, for some unavoidable reasons it is not possible for a candidate to appear personally, he/she may send his/her duly authorized representative with Admit Card, original documents, undertaking and authority letter to the effect that allotment made on the basis of choices indicated by such representative shall be binding on him/her (Format for Authority Letter is Form XVI).

(X)

Admission to MD/MS/PG Diploma and MDS shall be completed on 31st May of a relevant year, MBBS/BDS courses

shall be completed by 30th September of every relevant year and for BAMS/BUMS and B. P. T. courses, the admission process will close on 31st October of every relevant year and in case of engineering courses, the admission process will close on August, 15th of every relevant year and no admission will be made after these date even if a seat(s) remains vacant unless otherwise notified by the competent authority/regulating authority like MCI/DCI/AYUSH etc.

37.

Verification of Documents.

- (I) Mere uploading of required documents will not confer any right on the candidate unless these documents are produced in original at the time of counselling and have been found valid by the committee constituted by the Board for this purpose.

(II)

The candidate must report for counselling along with the required original documents for verification.

(III)

Mere mention of the rank of a candidate in the list of candidates called for counseling will not confer any right to him/her unless he/she possess valid certificates.

38.

Violation of Regulations.

- (I) If any candidate disregards any of the regulations, a detailed report regarding this along with the statement of the candidate and the concerned Invigilator(s) must be forwarded separately through the representative of the Board and where a candidate refuses to make a statement, this fact must be mentioned in the report.

(II)

Use of unfair means in any manner by the candidates in the test and/or any attempt to disrupt the conduct of the test shall render such candidates liable for disqualification.

(III)

In the event of recovery of any incriminating material from any candidate, a complete report regarding the fact, giving details of the recovered material(s) time, date of recovery and the title of the paper, duly signed by the Superintendent, Dy. Superintendent, Assistant Superintendent and the concerned Invigilators along with the statement of the candidate (in case he/she refuses to make the statement, this fact be written in the report) must be forwarded separately to the Controller of Examinations, BOPEE.

39.

Banning of Ragging.

- The candidates selected in various professional courses have to refrain from ragging which has been banned by the Hon'ble Supreme Court of India and MCI vide No. MCI-34(1)/ 2009-Med./25453 has issued guidelines which the students who get admission in Medical Colleges have to follow and have to sign undertakings by them and their parents on the prescribed format annexed with these regulations (Annexure-1).

40.

Power to issue orders or Instructions.

- (I) The Board may from time to time issue such orders or instructions in respect of conduct of Entrance Tests in general or any specific Test as it may deem fit and proper for effective conduct of such test(s).

(II)

The orders/instructions so issued shall supplement these regulations in smooth conduct of the tests.

(III)

The Board may relax the operation of any of these regulations for any entrance test or part thereof where it is necessary to do so in the interest of justice or for smooth conduct of such an entrance test.

41.

Formats of certificates.

- The Chief Superintendants/Chief Coordinators/Coordinators, Govt. Observers/ Members of Monitoring Squad/ Superintendents, Deputy Superintendents/Assistant Superintendents and Invigilators performing duties in any Entrance Test to be conducted by the BOPEE shall have to sign certificates in the annexed Format.

Form-I

Summary Centre Statement

Entrance Test _____ Date _____ Venue of the Entrance Test _____

Venue Code No. _____ Session _____ (Morning/Afternoon)

Total No. of the Candidates Allotted _____

Total No. of the Candidates Present _____

Total No. of the Candidates Absent _____

Name and Designation of the Chief Superintendent

Seal and Signature

Name and Designation of the Monitoring Squad

Member

Signature

Name and Designation of the Govt. Observer

Signature

Note : -The summary details given above must necessarily correspond with the detailed information given in other certificates.

Form-II

No Relation Certificate

(To be provided by the Supervisory Staff)

We, the below mentioned members of the Supervisory Staff engaged for the conduct of the Entrance Test on..... for admission toCourse, Year..... through this Centre at..... (Institution)Venue Code No. do hereby individually certify that none of our relations or candidates privately coached by us is/are appearing in the said test through this Test Centre. Here relation means : Son, Daughter, Brother, Sister, Son-in-Law, Daughter-in-Law, Brother-in-Law, Sister-in-Law, Cousin, Nephew, Grandson, Granddaughter, Step Son, Step Daughter, Adopted Son/Daughter.

S. No.

Name

Designation

Signature

Mobile No.

Name and Signature of the Superintendent

Name , Seal and Signature of the Chief Superintendent

Form-III

No Relation Certificate

(To be provided by the Chief Superintendent)

I..... do hereby certify that none of my relations or candidates privately coached by me is appearing in the Entrance test on (Date and Year) for admission to..... Course through this Test Centre No. Venue

Code No. at (Institution). Here relation means : Son, Daughter, Brother, Sister, Son-in-Law, Daughter-in-Law, Brother-in-Law, Sister-in-Law, Cousin, Nephew, Grandson, Granddaughter, Step Son, Step Daughter, Adopted Son, Adopted Daughter.

Seal and Signature of the Chief Superintendent

Form -IV

No Relation Certificate

(To be provided by the Government Observer)

I..... do hereby certify that none of my relations is appearing in the Entrance test on..... (Date and Year) for admission to..... Course through this Test Centre No. Venue Code No. at

..... (Institution). Here relation means : Son, Daughter, Brother, Sister, Son-in-Law, Daughter-in-Law, Brother-in-Law, Sister-in-Law, Cousin, Nephew, Grandson, Granddaughter, Step Son, Step Daughter, Adopted Son, Adopted Daughter.

Name and Signature of the Govt. Observer

Form-V

No Relation Certificate

(To be provided by the Monitoring Squad Member)

I..... do hereby certify that none of my relations or candidates privately coached by me is appearing in the Entrance test on (Date and Year) for admission to..... Course through this Test Centre No. Venue Code No. at (Institution). Here relation means : Son, Daughter, Brother, Sister, Son-in-Law, Daughter-in-Law, Brother-in-Law, Sister-in-Law, Cousin, Nephew, Grandson, Granddaughter, Step Son, Step Daughter, Adopted Son, Adopted Daughter.

Name and Signature of the Monitoring Squad Member

Form-VI

Certificate for Opening of Trunks Containing Question Booklet Parcels

Name of the Entrance Test _____ Year _____

Venue of the Entrance Test _____

Venue Code No. _____

Date of the Entrance Test _____

Paper/Subject _____ Session _____.

It is certified that the _____ Trunk(s) carrying confidential material for today's Entrance Test were found locked and sealed. They were opened at _____ on _____ in presence of the undersigned and were found containing _____ parcels, duly sealed, having Question Booklet(s) of the paper/subject mentioned.

Name and Designation of the Superintendent

Signature

1. _____

1. _____

2. _____

2. _____

3. _____

3. _____

4. _____

4. _____

5. _____

5. _____

6. _____

6. _____

7. _____

7. _____

8. _____

8. _____

9. _____

9. _____

10. _____

10. _____

Name, Designation and address of the Monitoring Squad Member

Signature _____

Name of the Chief Superintendent

Seal and Signature _____

Name, Designation and address of the Govt. Observer

Signature _____

Form-VII

Certificate for Opening of Question Booklet Parcels

Name of the Entrance Test _____ Year _____ Venue of the Entrance Test _____
Venue Code No. _____ Paper/Subject _____ Date of the Entrance Test _____ Session _____.

We, the undersigned hereby certify that the sealed packet (s) containing Question Booklet(s) of _____ paper/subject for _____ has/have been examined by us and found them properly in sealed conditions and that they were opened in our presence at _____ (Time) on _____ (Date).

It is certified that upon counting _____ Question Booklets were found in the sealed packet(s) which conform to the number shown on the Packet(s).

1. Signature of the Invigilator

Name _____

Signature of the Assistant Superintendent

2. Signature of the Invigilator

Name _____

Name of the Assistant Superintendent

Seal and Signature of the Superintendent _____

Name and Designation of the Government Observer _____

Signature _____

Name and Designation of the Monitoring Squad Member _____

Signature _____

Name of the Chief Superintendent _____

Seal and Signature _____

Form-VIII

Candidate's Identity Verification Certificate

Certified that the identity of the candidates appearing for the Entrance Test _____ on _____ Session _____ Venue of the Entrance Test _____ Venue Code No. _____ has been thoroughly checked in the Examination Hall/Room by comparing the Admit Cards with the Attendance and OMR Sheets of the candidates and no proxy candidate has been found. Only bonafide candidates with proper Admit Cards have been allowed to appear in the Entrance Test.

Signature of the Superintendent

Signature of the Chief Superintendent

Name _____

Name _____

Date _____

Date _____

Signature of the Invigilators

1

2

Form-IX

Packet Containing OMR Answer Sheets

Name of the Entrance Test _____ year _____

Venue of the Entrance Test _____

Paper/Subject _____ Venue Code No. _____

Session _____

Date _____

Number of the candidates allotted to the Centre _____

Number of Answer Sheets contained in the Parcel _____

From Serial No. _____ to Serial No. _____

Signature of the Assistant Superintendent

Signature and Seal of the Superintendent

Date _____

Date _____

Form-X

Account of OMR Answer Sheets

Name of the Entrance Test _____ Year _____

Venue of the Entrance Test _____

Paper/Subject _____ Venue Code No. _____

Session _____ Date _____

Number of the candidates allotted to the Centre _____

* Number of Answer Sheets issued to the candidates _____

From Serial No. _____ to _____.

Number of unused/defective Answer Sheets returned to the Board

(with serial number) _____

Signature of the Assistant Superintendent

Name _____

Signature and Seal of the Superintendent

Date _____

Name _____

* This number should be the same as the number of candidates present in the Examination Hall.

Note : - A separate copy of this certificate may be used for each Session of the Entrance Test.

Form-XI

Account of Question Booklets

Name of the Entrance Test _____ year _____

Venue of the Entrance Test _____

Paper/Subject _____ Venue Code No. _____

Session _____ Date _____ Number _____ of _____ candidates _____ allotted _____ to _____ the
Centre _____.

*Number of Question Booklets received from the Board _____

*Number of Question Booklets issued to the Candidates _____

Number of unused Question Booklets returned to the Board _____

Signature of the Assistant Superintendent

Signature of the Superintendent

Name _____

Name _____

Date _____

* This number should be the same as the number of candidates present in the Examination Hall.

Note : -A separate copy of this certificate may be used for each Session of the Entrance Test.

Form-XII

Certificate of Control Room Incharge

I _____ Control Room Incharge of the Centre No. _____ Venue Code
No. _____ at _____ constituted for the Entrance Test of _____ dated _____ have
received _____ sealed _____ Trunks _____ at _____ (place)
at _____ (Time and Date). I have verified them and found them sealed and are meant for the Centre for
which I have been appointed as a Control Room Incharge.

Name _____

Designation _____

Address _____

Undertaking and Authority Letter for Counselling

I, _____ son/daughter/wife of Mr. _____ age _____ years _____ months, bearing Roll No. _____ placed at Rank No. _____ in the Entrance Examination for admission to MBBS/BDS/BAMS/BUMS/ BPT/BE Course 2016, conducted by BOPEE do hereby solemnly affirm and undertake that the decision of my authorized representative, Mr./Mrs./Miss _____ son/daughter/wife of Mr. _____ age _____ years, regarding selection/rejection of seat on the date of personal appearance shall be binding on me and I shall not have any claim whatsoever, other than the decision taken by my authorized representative on my behalf on _____.

Signature of candidate _____

Name _____

Roll No. _____

Address _____

Authority Letter

I, _____ son/daughter/wife of Mr. _____ bearing Roll No. _____ for Entrance Examination for admission MBBS/BDS/BAMS/BUMS/BPT/BE Course 2016 do hereby authorise Mr./Mrs./Miss _____ son/daughter/wife of Mr. _____ R/o _____ to represent me on _____ (Date) before the committee for allotment of a seat in MBBS/BDS/BAMS/BUMS/BPT/BE Course 2016. The signatures and the photograph of above named Mr./Miss/Mrs. _____ are attested below.

Photograph of candidate attested by Gazetted officer

Signature of candidate _____

Name _____

Roll No. _____

Address _____

Photograph to be Attested by the Gazetted Officer

Photograph of authorized representative attested by Candidate

Signature of candidate _____

Name _____

Roll No. _____

Address _____

Photograph to be attested by the Candidate

Annexure I, Part I

Undertaking by the Candidate/student

1. I, _____ S/o. _____ D/o. _____ of Mr./Mrs./Ms. _____, have carefully read and fully understood the law prohibiting ragging and the directions of the Supreme Court and the Central/State Government in this regard.

2. I have received a copy of the MCI Regulations on Curbing the Menace of Ragging in Higher Educational Institutions, 2009.

3. I hereby undertake that-

? I will not indulge in any behavior or act that may come under the definition of ragging.

? I will not participate in or abet or propagate ragging in any form.

? I will not hurt anyone physically or psychologically or cause any other harm.

4. I hereby agree that if found guilty of any aspect of ragging, I may be punished as per the provisions of the MCI Regulations mentioned above and/or as per the law in force. Signed this ____ day of _____ month of _____ year _____.

Signature _____

Address _____

Name :

(1)

Witness :

(2)

Witness :

Annexure I, Part II

Undertaking by Parent/guardian

1. I, _____ F/o. M/o. G/o _____, have carefully read and fully understood the law prohibiting ragging and the directions of the Hon'ble Supreme Court and the Central/State Government in this regard as well as the MCI Regulations on Curbing the Menace of Ragging in Higher Educational Institutions, 2009.

2. I assure you that my son/daughter/ward will not indulge in any act of ragging.

3. I hereby agree that if he/she is found guilty of any aspect of ragging, he/she may be punished as per the provisions of the MCI Regulations mentioned above and/or as per the law in force. Signed this ____ day of ____ month of ____ Year

Signature

Address _____

Name :

(1)

Witness :

(2)

Witness :

Annexure-II

Office of the Commanding Officer of the Unit

Certificate of Being Child of Defence Personnel

(in-Service)

This is to certify that Mr./ Miss/Mrs. _____ is a son/ daughter of _____ who is serving or has served as a member of Army/Navy or Air Force.

Competent Authority

With Name and Seal

Note : - It is clarified that Child of Defence personnel means a candidate whose parent is rendering core services in Air force or Army or Navy which does not include a candidate whose parent is rendering auxiliary/allied/intelligence service in any of these forces.

Annexure-III

Ex-service Men

Certificate of being a member of defence personnel

SRO-272 dated 3-7-82/SRO-314 dated 9-5-85 as amended vide SRO-294 dated 21-10-05, para 2(viii)

This _____ is _____ to _____ certify _____ that _____ Mr./Ms. _____ Son/Daughter _____ of _____ No. _____ Rank _____ Name _____

R/o _____ PO _____ Tehsil _____ District _____, who is a member of Defence Forces. His/Her ward is beneficiary under the term of SRO-272 dated 3-7-82/SRO-314 dated: 9-5-85 as amended vide SRO-294 dated 21-10-05 being the son/daughter of the defence forces personnel.

It _____ is _____ certified _____ that _____ said _____ Mr./Ms. _____ Son/Daughter _____ of _____ submitted his/her application for grant of this certificate on _____ and the certificate has been issued to him/her under my seal and signature today the _____ after the proper enquiry has been made in this office file No. _____ dated _____.

Station :

Dated :

Zila Sainik Welfare Officer.

Annexure-IV

Office of the Deputy Inspector General of Police

Certificate of Being a Child of Para-Military

Force/police Personnel(In-Service)

This is to certify that Mr./ Miss/Mrs. _____ is a son/daughter of _____ who is a permanent resident of the State and is serving as _____ in Para-military Force/Police Force in the State, Mr./Mrs. _____ is not rendering engineering service or other service of civil nature which would disentitle his/her son/daughter from claiming the benefit of being child of Para-military Force/Police Personnel.

It is also certified that Son/Daughter of Mr. _____ is entitled to get Certificate of being a child of Para-military Force/Police Personnel as provided in Rule 2 (ix) of the Jammu and Kashmir Reservation Rules, 2005.

Name, Signature and Office Stamp

DIG Concerned.

Space for Photograph of the candidate to be duly attested

Name, Signature and Office StampDIG Concerned.

Annexure-V

Office of the Deputy Inspector General of Police

Certificate of Being a Child of Para-Military police force/personnel (Retired)

This is to certify that Mr./ Miss/Mrs. _____ is a son/daughter of _____ who is a permanent resident of the State and has died while serving or has served in Para-military Force/Police Force in the State and had been honorably discharged or retired. Mr./Mrs. _____ was not rendering engineering service or other service of civil nature which would disentitle his/her son/daughter from claiming the benefit of being child of Para-military Force/Police Personnel.

It is also certified that Son/Daughter of Mr. _____ is entitled to get Certificate of being a child of Para-military Force/Police Personnel as provided in Rule 2 (ix) of the Jammu and Kashmir Reservation Rules, 2005.

Space for Photograph of the candidate to be duly attested

Name, Signature and Office StampDIG Concerned.

Annexure-VI

Certificate of Rural Service

This is to certify that Mr./Ms./Mrs. _____
R/o _____

S/o/D/o/W/o _____ working as _____ in the Health Department has served for a minimum period of five years in a rural area(s) and that this certificate is issued to enable him/her to seek admission in MD/MS/PG Diploma/MDS Course (Jammu/Srinagar) through BOPEE under Reserved Category "Rural Service".

No.

Signature and Stamp

Director,

Date

Department of Health Services, Jammu/Srinagar.

Annexure-XIII

MCI Regulations for Prevention and Prohibition of Ragging

Medical Council of India

Notification

New Delhi, the 3rd August, 2009

No. MCI-34(1)/2009-Med./25453, in exercise of the powers conferred by section 33 of the Indian Medical Council Act, 1956 (102 of 1956) the Medical Council of India with the previous sanction of the Central Government hereby makes the following Regulations, namely : -

1. Short title, commencement and applicability. - (i) These Regulations may be called the Medical Council of India (Prevention and Prohibition of Ragging in Medical Colleges/Institutions) Regulations, 2009.

(ii)

They shall come into force on the date of their publication in the Official Gazette.

2. Objective. - To root out ragging in all its forms from medical colleges/institutions in the country by prohibiting it by law, preventing its occurrence by following the provisions of these Regulations and punishing those who indulge in ragging as provided for in these Regulations and the appropriate law in force.

3. Definitions. - For the purposes of these Regulations : -

3.1

"Medical College" means an institution, whether known as such or by any other name, which provides for a programme, beyond 12 years of schooling, for obtaining recognized MBBS qualification from a university and which, in accordance with the rules and regulations of such university, is recognized as competent to provide for such programmes of study and present students undergoing such programmes of study for the examination for the award of recognized MBBS/PG Degree/Diploma qualifications.

3.2

"Head of the institution" means the Dean/Principal/Director of the concerned medical college/institution.

3.3

"Ragging" includes the following : - Any conduct whether by words spoken or written or by an act which has the effect of harassing, teasing, treating or handling with rudeness any other student, indulging in rowdy or undisciplined activities which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension thereof in a fresher or a junior student or asking the students to do any act or perform something which such student will not in the ordinary course and which has the effect of causing or generating a sense of shame or embarrassment so as to adversely affect the physique or psyche of a fresher or a junior student.

3.4

MCI means MCI constituted in terms of section 3 of Indian Medical Council Act, 1956.

3.5

"University" means a university established or incorporated by or under a Central Act, a Provincial Act or a State Act, an institution deemed to be university under section 3 of the UGC Act, 1956, or an institution specially empowered by an Act of Parliament to confer or grant degrees.

4. Punishable ingredients of Ragging. -

? Abetment to ragging ;

? Criminal conspiracy to rag ;

? Unlawful assembly and rioting while ragging ;

? Public nuisance created during ragging ;

? Violation of decency and morals through ragging ;

? Injury to body, causing hurt or grievous hurt ;

? Wrongful restraint ;

? Wrongful confinement ;

? Use of criminal force ;

? Assault as well as sexual offences or even unnatural offences ;

? Extortion ;

? Criminal trespass ;

? Offences against property ;

? Criminal intimidation ;

? Attempts to commit any or all of the above mentioned offences against the victim(s) ;

? Physical or psychological humiliation ;

? All other offences following from the definition of "Ragging".

5. Measures for prohibition of ragging. - 5.1 The Medical College/Institution/University shall strictly observe the provisions of the Act of the Central Government and the State Governments, if any, or if enacted and/or for the time being in force, considering ragging as a cognizable offence under the law at par with rape and other atrocities against women and ill-treatment of persons belonging to the SC/ST and prohibiting ragging in all its forms in all institutions.

5.2

Ragging in all its forms shall be totally banned in the entire Medical College/Institution/University including its departments, constituent units, all its premises (academic, residential, sports, canteen etc.) whether located within the campus or outside and in all means of transportation of students whether public or private.

5.3

The Medical College/Institution/University shall take strict action against those found guilty of ragging and/or of abetting ragging.

6. Measures for prevention of ragging at the institution level. - 6.1 Before admissions : -

6.1.1

The advertisement for admissions shall clearly mention that ragging is totally banned/prohibited in the Medical College/Institution and anyone found guilty of ragging and/or abetting ragging is liable to be punished appropriately.

6.1.2

The brochure of admission/instruction booklet for candidates shall print in block letters these Regulations in full (including Annexures).

6.1.3

The 'Prospectus' and other admission related documents shall incorporate all directions of the Hon'ble Supreme Court and/or the Central or State Governments as applicable, so that the candidates and their parents/guardians are sensitized in respect of the prohibition and consequences of ragging.

6.1.4

A Brochure or booklet/leaflet shall be distributed to each student at the beginning of each academic session for obtaining undertaking not to indulge or abet ragging and shall contain the blueprint of prevention and methods of redress.

The application form for admission/enrolment shall have a printed undertaking, preferably both in English/ Hindi and in one of the regional languages known to the institution and the applicant (English version given in Annexure I, Part I), to be filled up and signed by the candidate to the effect that he/she is aware of the law regarding prohibition of ragging as well as the punishments, and to the effect that he/she has not been expelled and/or debarred from admission by any institution and that he/she, if found guilty of the offence of ragging and/or abetting ragging, is liable to be punished appropriately.

6.1.5

The application form shall also contain a printed undertaking, preferably both in English/Hindi and in one of the regional languages known to the institution and the parent/guardian (English version given in Annexure I, Part II), to be signed by the parent/ guardian of the applicant to the effect that he/ she is also aware of the law in this regard and agrees to abide by the punishment meted out to his/ her ward in case the latter is found guilty of ragging and/or abetting ragging.

A database shall be created out of affidavits affirmed by each student and his/her parents/guardians stored electronically, and shall contain the details of each student. The database shall also function as a record of ragging complaints received.

6.1.6

The application for admission shall be accompanied by a document in the form of the School Leaving Certificate/Transfer Certificate/Migration Certificate/ Character Certificate which shall include a report on the behavioral pattern of the applicant, so that the institution can thereafter keep intense watch upon a student who has a negative entry in this regard.

6.1.7

A student seeking admission to the hostel shall have to submit additional undertaking in the form of Annexure I (both Parts) along with his/ her application for hostel accommodation.

6.1.8

At the commencement of the academic session, the Head of the Institution shall convene and address a meeting of various functionaries/agencies, like wardens, representatives of students, parents/ guardians, faculty, district administration including police, to discuss the measures to be taken to prevent ragging in the Institution and steps to be taken to identify the offenders and punish them suitably.

6.1.9

To make the community at large and the students in particular aware of the dehumanizing effect of ragging, and the approach of the institution towards those indulging in ragging, big posters (preferably multicolored with different colours for the provisions of law, punishments etc.) shall be prominently displayed on all Notice Boards of all departments, hostels and other buildings as well as at vulnerable places. Some of such posters shall be of permanent nature in certain vulnerable places.

6.1.10

Apart from placing posters mentioned in sub-clause 6.1.9 above at strategic places, the Medical College/ Institution shall undertake measures for extensive publicity against ragging by means of audio-visual aids, by holding counseling sessions, workshops, painting and design competitions among students and other methods as it deems fit.

6.1.11

The Medical College/Institution/University shall request the media to give adequate publicity to the law prohibiting ragging and the negative aspects of ragging and the institution's resolve to ban ragging and punish those found guilty without fear or favour.

6.1.12

The Medical College/Institution/University shall identify, properly illuminate and man all vulnerable locations.

6.1.13

The Medical College/Institution/University shall tighten security in its premises, especially at the vulnerable places. If necessary, intense policing shall be resorted to at such points at odd hours during the early months of the academic session.

6.1.14

The Medical College/Institution/University shall utilize the vacation period before the start of the new academic year to launch wide publicity campaign against ragging through posters, leaflets, seminars, street plays etc.

6.1.15

The faculties/departments/units of the Medical College/Institution/University shall have induction arrangements (including those which anticipate, identify and plan to meet any special needs of any specific section of students) in place well in advance of the beginning of the academic year with a clear sense of the main aims and objectives of the induction process.

The Principal or Head of the Institution/Department shall obtain an undertaking from every employee of the institution including teaching and non-teaching members of staff, contract labour employed in the premises either for running canteen or as watch and ward staff or for cleaning or maintenance of the buildings/lawns etc. that he/she would report promptly any case of ragging which comes to his/ her notice. A provision shall be made in the service rules for issuing certificates of appreciation to such members of the staff who report ragging which will form part of their service record.

6.2

On admission : -

6.2.1

Every fresher admitted to the Medical College/ Institution/University shall be given a printed leaflet detailing when and to whom he/she has to turn to for help and guidance for various purposes (including Wardens, Head of the institution, members of the Anti-ragging Committees, relevant district and police authorities), addresses and telephone numbers of such persons/authorities etc., so that the fresher need not look up to the seniors for help in such matters and get indebted to them and start doing things, right or wrong, at their behest. Such a step will reduce the freshers' dependence on their seniors.

Every institution should engage or seek the assistance of professional counselors at the time of admissions to counsel 'freshers' in order to prepare them for the life ahead, particularly for adjusting to the life in hostels.

6.2.2

The Medical College/Institution/University through the leaflet mentioned above shall explain to the new entrants the arrangements for their induction and orientation which promote efficient and effective means of integrating them fully as students.

6.2.3

The leaflet mentioned above shall also inform the freshers about their rights as bonafide students of the institution and clearly instructing them that they should desist from doing anything against their will even if ordered by the seniors, and that they have nothing to fear as the institution cares for them and shall not tolerate any atrocities against them.

6.2.4

The leaflet mentioned above shall contain a calendar of events and activities laid down by the institution to facilitate and complement familiarization of freshers with the academic environment of the institution.

6.2.5

The Medical College/Institution/University shall also organize joint sensitization programmes of 'freshers' and seniors.

On the arrival of senior students after the first week or after the second week as the case may be, further orientation programmes must be scheduled as follows (i) joint sensitization programme and counseling of both 'freshers' and senior by a Professional Counselor; (ii) joint orientation programme of 'freshers' and seniors to be addressed by the Principal/Head of the institution, and the Anti-ragging Committee ; (iii) organization on a large scale of cultural, sports and other activities to provide a platform for the 'freshers' and seniors to interact in the presence of faculty members ; (iv) in the hostel, the warden should address all students, may request two junior colleagues from the college faculty to assist the warden by becoming resident tutors for a temporary duration.

6.2.6

Freshers shall be encouraged to report incidents of ragging, either as victims, or even as witnesses.

6.3

At the end of the academic year : -

6.3.1

At the end of every academic year the Dean/ Principal/Director shall send a letter to the parents/ guardians of the students who are completing the first year informing them about the law regarding ragging and the punishments, and appealing to them to impress upon their wards to desist from indulging in ragging when they come back at the beginning of the next academic session.

6.3.2

At the end of every academic year, the Medical College/Institution/University shall form a 'Mentoring Cell' consisting of Mentors for the succeeding academic year. There shall be as many levels or tiers of Mentors as the number of batches in the institution, at the rate of 1 Mentor for 6 freshers and 1 Mentor of a higher level for 6 Mentors of the lower level.

Each batch of freshers should be divided into small groups and each such group shall be assigned to a member of the staff. Such staff member should interact individually with, each member of the group on a daily basis for ascertaining the problems/ difficulties, if any, faced by the fresher in the institution and extending necessary help. In the case of freshers admitted to a hostel, it shall be the responsibility of the teacher in charge of the group to coordinate with the warden of the hostel and to make surprise visits to the rooms in the hostel where the members of the group are lodged.

6.4

Setting up of Committees and their functions : -

6.4.1

The Anti-Ragging Committee : - Every institution shall have an Anti-Ragging Committee and an Anti -Ragging Squad. The Anti-Ragging Committee shall be headed by the Head of the institution and shall consist of representatives of civil and police administration, local media, Non-Government Organizations involved in youth activities, faculty members, parents, students belonging to the 'freshers' category as well as seniors and non-teaching staff. It shall monitor the Anti-Ragging activities in the institution, consider the recommendations of the Anti-Ragging Squad and take appropriate decisions, including spelling out suitable punishments to those found guilty.

6.4.2

The Anti-Ragging Squad : -The Anti-Ragging Squad shall be nominated by the Head of the institution with such representation as considered necessary and shall exclusively consist of members belonging to the various sections of the campus community. The Squad shall have vigil, oversight and patrolling functions. It shall be kept mobile, alert and active at all times and shall be empowered to inspect places of potential ragging and make surprise raids on hostels and other hot spots. The Squad shall investigate incidents of ragging and make recommendations to the Anti-Ragging Committee and shall work under the overall guidance of the Anti- Ragging Committee.

All matters of discipline within teaching institutions must be resolved within the campus except those impinging on law and order or breach of peace or public tranquility, all of which should be dealt with under the penal laws of the land.

University Monitoring Cell at the level of the University : - we recommend that there should be a Monitoring Cell on Ragging, which should coordinate with the affiliated colleges and institutions under its domain. The Cell should call for reports from the Heads of institutions in regard to the activities of the Anti-Ragging Committee, Anti-Ragging Squads, Monitoring Cells at the level of the institution, the compliance with instructions on conducting orientation programmes, counseling sessions, the incidents of ragging, the problems faced by wardens or other officials. It should also keep itself abreast of the decisions of the District level Anti-Ragging Committee. This Monitoring Cell should also review the efforts made by institutions to publicize anti-ragging measures, soliciting of undertaking from parents and students each year to abstain from ragging activities or willingness to be penalized for violations, and should function as the prime mover for

initiating action on the part of the appropriate authorities of the university for amending the Statutes or Ordinances or Bye-laws to facilitate the implementation of anti-ragging measures at the level of the institution.

6.5

Other measures : -

6.5.1

The Annexures mentioned in 6.1.4, 6.1.5 and 6.1.7 of these Regulations shall be furnished at the beginning of each academic year by every student, that is, by freshers as well as seniors.

6.5.2

The Medical College/Institution/University shall arrange for regular and periodic psychological counseling and orientation for students (for freshers separately, as well as jointly with seniors) by professional counselors during the first three months of the new academic year. This shall be done at the institution and department/course levels. Parents and teachers shall also be involved in such sessions.

6.5.3

Full-time warden shall be appointed as per the eligibility criteria laid down for the post reflecting both the command and control aspects of maintaining discipline, as well as the softer skills of counseling and communicating with the youth outside the class-room situations. Wardens shall be accessible at all hours and shall be provided with mobile phones and the details of their telephone number must be widely publicized. Similarly, the telephone numbers of the other important functionaries, Heads of institutions, faculty members, members of the anti-ragging committees, district and sub-divisional authorities and State authorities where relevant, should also be widely disseminated for the needy to get in touch or seek help in emergencies. The institution shall review and suitably enhance the powers and perquisites of Wardens and authorities involved in curbing the menace of ragging. Further the institutions shall provide necessary incentives for the post of full-time warden, so as to attract suitable candidates.

6.5.4

Freshers shall be lodged in a separate hostel block, wherever possible, and where such facilities are not available, the college/institution shall ensure that seniors' access to freshers' accommodation is strictly monitored by wardens, security guards and college staff.

As ragging takes place mostly in the hostels after the classes are over in the college, a round the clock vigil against ragging in the hostel premises shall be provided. It is seen, that college canteens and hostel messes are also places where ragging often takes place. The employers/employees of the canteens/ mess shall be given necessary instructions to keep strict vigil and to report the incidents of ragging to the college authorities, if any.

The security personnel posted in hostels shall be under the direct control of the Wardens and assessed by them.

6.5.5

Private commercially managed lodges and hostels shall be registered with the local police authorities, and this shall be done necessarily on the recommendation of the Head of the institution. Local police, local administration and the institutional authorities shall ensure vigil on incidents that may come within the definition of ragging and shall be responsible for action in the event of ragging in such premises, just as they would be for incidents within the campus. Managements of such private hostels shall be responsible for action in the event of ragging in such premises, just as they would be for incidents within campuses.

6.5.6

Besides registering private hostels as stated above, the towns or cities where educational institutions are located should be apportioned as sectors among faculty members, as is being done by some institutions, so that they could maintain vigil and report any incidents of ragging outside campuses and en route while 'freshers' commute.

6.5.7

The Head of the institution shall take immediate action on receipt of the recommendations of the Anti-Ragging Squad. He/She shall also take action suo motu, if the circumstances so warrant.

6.5.8

Freshers who do not report the incidents of ragging either as victims or as witnesses shall also be punished suitably.

6.5.9

Anonymous random surveys shall be conducted across the 1st year batch of students (freshers) every fortnight during the first three months of the academic year to verify and cross-check whether the campus is indeed free of ragging or not. The institution may design its own methodology of conducting such surveys.

6.5.10

The burden of proof shall lie on the perpetrator of ragging and not on the victim.

6.5.11

The institution shall file an FIR with the police /local authorities whenever a case of ragging is reported, but continue with its own enquiry and other measures without waiting for action on the part of the police/ local authorities. Remedial action shall be initiated and completed within the one week of the incident itself.

6.5.12

The Migration/Transfer Certificate issued to the student by the Medical College/Institution /University shall have an entry, apart from those relating to general conduct and behaviour, whether the student has been punished for the offence of committing or abetting ragging, or not, as also whether the student has displayed persistent violent or aggressive behaviour or any inclination to harm others.

6.5.13

Preventing or acting against ragging shall be the collective responsibility of all levels and sections of authorities or functionaries in the Medical College/ Institution/University, including faculty, and not merely that of the specific body/committee constituted for prevention of ragging.

6.5.14

As such the college canteens and hostel messes are also places where ragging often takes place, hence the employers/employees of the canteens/mess shall be given necessary instructions to keep strict vigil and to report the incidents of ragging to the college authorities, if any.

Further access to mobile phones and public phones shall be unrestricted in hostels and campuses, except in class-rooms, seminar halls, library etc., where jammers shall be installed to restrict the use of mobile phones.

6.6

Measures for encouraging healthy interaction between freshers and seniors : -

6.6.1

The Medical College/Institution /University shall set up appropriate committees including the course-incharge, student advisor, Warden and some senior students to actively monitor, promote and regulate healthy interaction between the freshers and senior students.

6.6.2

Freshers' welcome parties shall be organized in each department by the senior students and the faculty together soon after admissions, preferably within the first two weeks of the beginning of the academic session, for proper introduction to one another and where the talents of the freshers are brought out properly in the presence of the faculty, thus helping them to shed their inferiority complex, if any, and remove their inhibitions.

6.6.3

The Medical College/Institution/University shall enhance the student-faculty interaction by involving the students in all matters of the institution, except those relating to the actual processes of evaluation and of faculty appointments, so that the students shall feel that they are responsible partners in managing the affairs of the institution and consequently the credit due to the institution for good work/ performance is due to them as well.

7. Regulatory Measures. - The inspecting/visiting committees of MCI shall cross verify that the medical college/institution has strictly complied with the anti-ragging measures and has a blemishless record in terms of there being no incident of ragging during the impending period (i. e. from earlier inspection) or otherwise.

8. Awardable Punishments. - 8.1 At the Medical College/Institution level : -

Depending upon the nature and gravity of the offence as established by the Anti-Ragging Committee of the institution, the possible punishments for those found guilty of ragging at the institution level shall be any one or any combination of the following : -

8.1.1

Suspension from attending classes and academic privileges.

8.1.2

Withholding/withdrawing scholarship/fellowship and other benefits.

8.1.3

Debarring from appearing in any test/examination or other evaluation process.

8.1.4

. Withholding results.

8.1.5

Debarring from representing the institution in any regional, national or international meet, tournament, youth festival etc.

8.1.6

Suspension/expulsion from the hostel.

8.1.7

Cancellation of admission.

8.1.8

Rustication from the institution for period ranging from 1 to 4 semesters.

8.1.9

Expulsion from the institution and consequent debarring from admission to any other institution for a specific period.

8.1.10

Fine of Rs. 25,000/- and Rs. 1 lakh.

8.1.11

Collective punishment: When the persons committing or abetting the crime of ragging are not identified, the institution shall resort to collective punishment.

8.2

Penal consequences for the heads of the institutions/ administration of the institution who do not take timely steps in the prevention of ragging and punishing those, who rag.

The authorities of the institution particularly the Head of the institution, shall be responsible to ensure that no incident of ragging takes place in the institution. In case any incident of ragging takes place, the Head shall take prompt and appropriate action against the person(s) whose dereliction of duty lead to the incident. The authority designated to appoint the Head shall, in its turn, take prompt and appropriate action against the Head.

In addition to penal consequences, departmental enquiries be initiated against such heads institutions/members of the administration/faculty members/ non-teaching staff, who display an apathetic or insensitive attitude towards complaints of ragging.

8.3

At the MCI level : -

8.3.1

Impose an exemplary fine of Rs. 1 lakh for each incident of ragging payable by erring medical college/ institution to such authority as may be designated by the appropriate Govt., as the case may be.

8.3.2

Declare the erring Medical College/Institution/ University as not having the minimum academic standards and warning the potential candidates for admission at such institution through public notice and posing on the MCI website.

8.3.3

Declare the erring Medical College/Institution/ University to be ineligible for preferring any application under section 10A of the Indian Medical Council Act, 1956 for a minimum period of one year, extendable by such quantum by the Council as would be commensurate with the wrong.

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